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4 KOSTIANTYN MARS, PRO SE

5
6 **UNITED STATES DISTRICT COURT**
7 **WESTERN DISTRICT OF TEXAS**
8 **AUSTIN DIVISION**

9 KOSTIANTYN MARS

10 Plaintiff,

11 vs.

12 STATE OF CALIFORNIA;

13 GAVIN NEWSOM, in his official capacity as Governor of the
14 State of California;

15 BETH MCGOWEN, in her official and individual capacities
16 as Presiding Judge of the Santa Clara County Superior Court;

17 JULIE EMEDE, in her official and individual capacities as
18 Presiding Judge of the Santa Clara County Superior Court;

19 SANTA CLARA COUNTY SUPERIOR COURT;

20 HANNA MARS

21 (Petitioner in the above-referenced state matters);

22 and all other judges, officials, agents, and co-conspirators
23 acting under color of law, including but not limited to Stephen
24 Lowney, Andrea Flint, James Towery, Thomas Kuhnle,
25 Benjamin Williams, Michael Clark, and Jessica Tenorio,

26 Defendants.

) Case No. :
) 1:26-cv-01624-RP-ML

) **NOTICE OF**
) **POST-REMOVAL**
) **STATE-COURT**
) **JUDGMENT**
) **AND**
) **REQUEST FOR**
) **DECLARATION THAT**
) **JUDGMENT IS VOID**
) **AND FOR INJUNCTION**
) **AGAINST ENFORCEMENT**

) **DATE:**
) **TIME:**
) **DEPT:**

27 **NOTICE OF POST-REMOVAL STATE-COURT JUDGMENT**
28 **AND REQUEST FOR DECLARATION THAT JUDGMENT IS VOID**
AND FOR INJUNCTION AGAINST ENFORCEMENT

Plaintiff Kostiantyn Mars respectfully notifies the Court of the following:

1. On June 15, 2026, Plaintiff filed a Notice of Removal removing multiple related Santa Clara County Superior Court actions, including Family Law Case No. 22FL003144, to this Court.

2. Written notice of the removal was provided to the Clerk of the Santa Clara County Superior Court. USPS records confirm that the Notice of Filing of Notice of Removal was received by the Santa Clara County Superior Court on July 27, 2026 (Exhibits A, B).

3. Under 28 U.S.C. § 1446(d), upon receipt of notice of removal, “the State court shall proceed no further unless and until the case is remanded.”

4. Despite the foregoing, the Santa Clara County Superior Court entered a “Judgment: Dissolution/Contested” and “Judgment: Notice of Entry (Family)” on August 14, 2026 (Exhibits C, D) signed by judge Stephen Lowney acting outside jurisdiction after his disqualification on February 20, 2024 (Exhibit E) and post-removal (Exhibits A, B). In addition, a series of orders and docket entries dated 2025–2026 appeared on the public docket contemporaneously with or after receipt of the notice of removal (Exhibit C).

5. Because the August 14, 2026 Judgment and related post-removal entries were entered after the state court received notice of removal, they are void for lack of jurisdiction.

RELIEF REQUESTED

Plaintiff respectfully requests that the Court:

A. Declare the August 14, 2026 Judgment of Dissolution, Notice of Entry, and all related post-removal orders and docket entries void ab initio under 28 U.S.C. § 1446(d);

B. Nullify and set aside, retroactive to September 13, 2022, all orders in the removed five cases that were entered without jurisdiction or in violation of due process;

C. Enjoin Defendants, the California Department of Child Support Services, and all persons acting in concert with them from enforcing the void Judgment or related orders, including by seeking or submitting any Qualified Domestic Relations Order, levy, or other process against Plaintiff’s 401(k) or other retirement assets; and

D. Grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

DATED: August 15, 2026


KOSTIANTYN MARS
Pro Se

EXHIBIT A -
USPS Tracking Record
Delivery / Pickup Confirmation by the Superior Court, Santa Clara County
July 27, 2026
San Jose, CA 95113
Tracking No. 9589 0710 5270 4117 1707 90

8/15/26, 4:39 PM

USPS Tracking® | USPS

ALERT: HURRICANE LALA IN HAWAII, SEVERE WEATHER IN THE UPPER MIDWEST AND OHIO ...

USPS Tracking®

FAQs >

Tracking Number:

Remove X

9589071052704117170790

Copy

Add to Informed Delivery

Latest Update

Your item was picked up at the post office at 6:36 am on July 27, 2026 in SAN JOSE, CA 95113.

Get More Out of USPS Tracking:

USPS Tracking Plus®

Delivered

Delivered, Individual Picked Up at Post Office

SAN JOSE, CA 95113

July 27, 2026 6:36 AM

See All Tracking History

[What Do USPS Tracking Statuses Mean?](#)

Text & Email Updates



USPS Tracking Plus®



Product Information



See Less ^

<https://tools.usps.com/tracking/9589071052704117170790>

1/2

EXHIBIT B -

Green Return Receipt

Received by Clerk of the Superior Court, Santa Clara County

(Signed by Ken Liu)

Tracking No. 9589 0710 5270 4117 1707 90

SENDER: COMPLETE THIS SECTION	COMPLETE THIS SECTION ON DELIVERY
■ Complete items 1, 2, and 3. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.	A. Signature  ☐ Agent ☐ Addressee
1. Article Addressed to: CLERK OF THE SUPERIOR COURT SANTA CLARA COUNTY SUPERIOR COURT 191 NORTH FIRST STREET SAN JOSE, CA 95113	B. Received by (Printed Name) Ken Liu C. Date of Delivery
2. Article Number (Transfer from service label) 9589 0710 5270 4117 1707 90	D. Is delivery address different from item 1? ☐ Yes If YES, enter delivery address below: ☐ No
3. Service Type ☐ Adult Signature ☐ Adult Signature Restricted Delivery ☐ Certified Mail® ☐ Certified Mail Restricted Delivery ☐ Collect on Delivery ☐ Collect on Delivery Restricted Delivery	☐ Priority Mail Express® ☐ Registered Mail™ ☐ Registered Mail Restricted Delivery ☐ Signature Confirmation™ ☐ Signature Confirmation Restricted Delivery

PS Form 3811, July 2020 PSN 7530-02-000-9053 Domestic Return Receipt

EXHIBIT C -
Public Docket Showing Void Post-Removal Judgment of Dissolution
Entered August 14, 2026
After Receipt of Notice of Removal
(and Other Fabricated 2026 Docket Entries)

**Public Portal**
Superior Court of California, County of Santa Clara

HOMESEARCHCALENDARSTRAFFIC PAYMENTREMOTE HEARING LOOKUPRESERVELOGIN

22FL003144

Kostiantyn Mars vs Hanna Mars

CASE INFOPARTIESEVENTSHEARINGSPRINTABLE

EVENTS

Show 25 entriesSearch:

File Date	File Type	Filed By	Comment
8/14/2026	Judgment: Notice of Entry (Family)	Hanna Mars,	
8/14/2026	Judgment: Dissolution/Contested		
8/4/2026	Minute Order		
6/16/2026	FL-NTC OF TRIAL DATE		
6/16/2026	Minute Order		
6/9/2026	Proof of Service: Mail	Hanna Mars,	Proof Of Service By Mail
6/9/2026	Declaration: Income and Expense	Hanna Mars,	Income And Expense Declaration
6/9/2026	Statement: Settlement Conference	Hanna Mars,	Respondent's Trial Brief
5/27/2026	Order: Remote Appearance	Nancy Roberts,	re: June 16; 10 am

EXHIBIT D -
Judgment of Dissolution
Santa Clara County Superior Court, Case No. 22FL003144
Filed August 14, 2026
Signed by Judge Stephen Lowney
(Post-Removal / Post-Disqualification)

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address):		FL-180
Nancy L. Roberts 187211 Law Office of Nancy L. Roberts 155 E. Campbell Ave., 255 Campbell, CA 95008 TELEPHONE NO.: (408) 871-0775 FAX NO. (Optional): E-MAIL ADDRESS (Optional): nlrobertslaw@sbcglobal.net ATTORNEY FOR (Name): <u>Hanna Mars</u>		FOR COURT USE ONLY Filed August 14, 2026 Clerk of the Court Superior Court of CA County of Santa Clara 22FL003144 By: limasa
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 201 N. First Street MAILING ADDRESS: 191 N. First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Family Justice Center		
MARRIAGE OR PARTNERSHIP OF PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS		
☒ DISSOLUTION ☐ JUDGMENT ☐ LEGAL SEPARATION ☐ NULLITY ☐ Status only ☐ Reserving jurisdiction over termination of marital or domestic partnership status ☐ Judgment on reserved issues Date marital or domestic partnership status ends: August 4, 2026		CASE NUMBER: 22FL003144

1. ☐ This judgment ☐ contains personal conduct restraining orders ☐ modifies existing restraining orders.
 The restraining orders are contained on page(s) _____ of the attachment. They expire on (date): _____

2. This proceeding was heard as follows: ☐ Default or uncontested ☐ By declaration under Family Code section 2336
☒ Contested ☐ Agreement in court
 a. Date: 7/31/2023, 11/13/2023 and 8/4/2026 Dept.: 79 Room: _____
 b. Judicial officer (name): Hon. Stephen Lowney ☐ Temporary judge
 c. ☒ Petitioner present in court ☐ Attorney present in court (name): only on 7/31/2023 and 11/13/2023
 d. ☒ Respondent present in court ☒ Attorney present in court (name): Nancy L. Roberts
 e. ☐ Claimant present in court (name): _____ ☐ Attorney present in court (name): _____
 f. ☐ Other (specify name): _____

3. The court acquired jurisdiction of the respondent on (date): 10/28/2022
 a. ☐ The respondent was served with process.
 b. ☒ The respondent appeared.

THE COURT ORDERS, GOOD CAUSE APPEARING

4. a. ☒ Judgment of dissolution is entered. Marital or domestic partnership status is terminated and the parties are restored to the status of single persons
 (1) ☒ on (specify date): August 4, 2026
 (2) ☐ on a date to be determined on noticed motion of either party or on stipulation.
 b. ☐ Judgment of legal separation is entered.
 c. ☐ Judgment of nullity is entered. The parties are declared to be single persons on the ground of (specify): _____

d. ☐ This judgment will be entered nunc pro tunc as of (date): _____
 e. ☐ Judgment on reserved issues.
 f. The ☐ petitioner's ☐ respondent's former name is restored to (specify): _____
 g. ☐ Jurisdiction is reserved over all other issues, and all present orders remain in effect except as provided below.
 h. ☒ This judgment contains provisions for child support or family support. Each party must complete and file with the court a *Child Support Case Registry Form* (form FL-191) within 10 days of the date of this judgment. The parents must notify the court of any change in the information submitted within 10 days of the change, by filing an updated form. The *Notice of Rights and Responsibilities—Health-Care Costs and Reimbursement Procedures and Information Sheet on Changing a Child Support Order* (form FL-192) is attached.

Form Adopted for Mandatory Use
 Judicial Council of California
 FL-180 (Rev. July 1, 2012)

JUDGMENT
 (Family Law)

Page 1 of 2
 Family Code, §§ 2024, 2340,
 2343, 2346
 www.court.ca.gov

CEB Essential
 csl.com | **Forms**

Hanna Mars

EXHIBIT E -

Statement of Disqualification

Judge Stephen Lowney

Filed February 20, 2024

1 KOSTIANTYN MARS
2 PO BOX 8081
3 SAN JOSE, CA 95155
4 (408) 518-0088
5 CONSTANTINE.MARS@GMAIL.COM

6 PER SE

(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY _____ DEPUTY

J. RARAS

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA**

KOSTIANTYN MARS

Petitioner,

vs.

HANNA MARS,

Respondent.

Case No.: 22FL003144

[Honorable Beth McGowen,
Presiding Judge of Superior Court of California]

[Dept. 72 – Honorable Brooke A. Blecher,
Supervising Judge of Superior Court of California]

[Dept. 79 – Hon. Stephen P. Lowney,
Judge to be served the Disqualification Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION OF
SANTA CLARA SUPERIOR COURT JUDGE
STEPHEN P. LOWNEY
FOR IMPERMISSIBLE CONFLICT OF
INTEREST,
REQUEST FOR HIS DISQUALIFICATION,
STAY ON ALL HIS ORDERS UNTIL FINAL
JUDGMENT,
AND NULLIFICATION OF ALL HIS ORDERS
RETROACTIVELY BACK TO 10/31/2022**

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]

(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -

NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

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Austin, TX 78727
Phone Number: 202.505.9444
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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **PROPOSED ORDER ON**
) **NOTICE OF**
) **POST-REMOVAL**
) **STATE-COURT**
) **JUDGMENT**
) **AND REQUEST FOR**
) **DECLARATION THAT**
) **JUDGMENT IS VOID**
) **AND FOR INJUNCTION**
) **AGAINST**
) **ENFORCEMENT**

) **DATE:**
) **TIME:**
) **DEPT:**

**PROPOSED ORDER ON
NOTICE OF POST-REMOVAL STATE-COURT JUDGMENT
AND REQUEST FOR DECLARATION THAT JUDGMENT IS VOID
AND FOR INJUNCTION AGAINST ENFORCEMENT**

Upon consideration of Plaintiff's Notice of Post-Removal State-Court Judgment and Request
for Declaration that Judgment is Void and for Injunction Against Enforcement, and good cause
appearing, the Court hereby ORDERS as follows:

1
2 IT IS HEREBY ORDERED that:

3
4 1. The Judgment of Dissolution and Notice of Entry entered by the Santa Clara County
5 Superior Court on or about August 14, 2026, and all related orders and docket entries that
6 appeared after the state court's receipt of notice of removal on July 27, 2026, are DECLARED
7 VOID AB INITIO under 28 U.S.C. § 1446(d).

8
9 2. Defendants, the California Department of Child Support Services, and all persons acting in
10 concert with them are ENJOINED from enforcing the void Judgment or any related
11 post-removal orders, including by seeking or submitting any Qualified Domestic Relations
12 Order, levy, garnishment, or other process against Plaintiff's 401(k) or other retirement assets.

13
14 3. Any retirement plan administrator that receives a QDRO or similar order based on the void
15 Judgment shall take no action to process or distribute funds pursuant to such order pending
16 further order of this Court.

17
18 IT IS SO ORDERED.

19
20 DATED: _____

21
22 United States District Judge
23 Western District of Texas
24 Austin Division
25
26
27
28